

Appendix D to opinion of ALITO, J.

3A. CHARACTER AND SOCIAL ADJUSTMENT: If your answer to every question is truthfully "NO," indicate so in the appropriate space. If your answer is "YES," indicate so in the appropriate space and give details in item 39, "REMARKS." A "YES" answer will not necessarily disqualify you for enlistment; it will depend on the circumstances surrounding the situation.					
				YES	NO
a.	Questions (1), (2), and (3) below concern possession, supply, use without a prescription of marijuana, narcotics, LSD or other dangerous drugs. A "Yes" answer to (3) has no bearing on your eligibility to enlist or be commissioned but is essential to accurate job classification. Additional screening will occur during basic training or officer training school.				
	(1) Have you ever used narcotics, LSD or other dangerous drugs?				
	(2) Have you ever been a supplier of narcotics, LSD or other dangerous drugs or marijuana?				
	(3) Have you used marijuana at any time in the past six months?				
b.	Has your use of drugs or alcoholic beverages (such as liquor, beer, wine), ever resulted in your loss of a job, arrest by police, or treatment of alcoholism?				
	Are you a homosexual or a bisexual? ("Homosexual" is defined as: sexual desire or behavior directed at a person(s) of one's own sex. "Bisexual" is defined as: a person sexually responsive to both sexes.)				
	Do you intend to engage in homosexual acts (sexual relations with another person of the same sex)?				
e.	Are you a conscientious objector? That is, do you have, or have you ever had, a firm, fixed, and sincere objection to participation in war in any form or to the bearing of arms because of religious training or belief?				
f.	Have you ever been rejected for enlistment, reenlistment, or induction by any branch of the Armed Forces of the United States?				
g.	Are you now, or have you ever been, a deserter from any branch of the Armed Forces of the United States?				
h.	Are you now, or have you ever been, a member of the Communist Party or any Communist organization? Are you now, or have you ever been, affiliated with any organization, association, movement, group, or combination of persons which advocates the overthrow of our constitutional form of government or which has adopted the policy of advocating the commission of acts of violence to deny other persons their rights under the Constitution of the United States or which seeks to alter the form of government of the United States by unconstitutional means? (If "YES," give details in item 39, "REMARKS.")				
DD Form 1966/3, AUG 85					
Previous editions are obsolete					
PAGE 3					

Appendix D to opinion of ALITO, J.

NAME		SOCIAL SECURITY NUMBER
37. OTHER BACKGROUND DATA		
a.	Have you ever traveled to, or resided in, a foreign country except as a member of the United States Armed Forces (including dependent travel) performing official duties? (If "YES," give details in Item 39. "REMARKS.")	YES NO
b.	Are you the only living child of your parents?	
c.	Are you now drawing, or do you have an application pending, or approval for: retired pay, disability allowance, severance pay, or a pension from the Government of the United States?	
d.	Have you been enrolled in ROTC, Junior ROTC, Sea Cadet Program, or have you been a member of the Civil Air Patrol? (If "YES," enter organization and its address in Item 39. "REMARKS.")	
38. UNDERSTANDING		
a.	I understand that an original enlistment obligates me to serve in the Armed Forces for a period of eight (8) years (active and inactive duty) unless sooner discharged.	b. APPLICANT'S INITIALS
SECTION IV - REMARKS		
39. REMARKS (Enter item(s) being continued.)		

Appendix D to opinion of ALITO, J.

DD Form 1666-4, AUG 85 PREVIOUS EDITIONS ARE OBSOLETE PAGE 4

Appendix D to opinion of ALITO, J.

I fully understand that I will not be guaranteed any specific military skill or assignment to a geographic area except as shown in item 43.a above and annexes attached to my Enlistment/Reenlistment Document (DD Form 4)		APPLICANT'S INITIAL	
44. CERTIFICATION OF RECEIPT OF ACTION			
I certify that I have reviewed the information contained in this document and, to the best of my judgment and belief, the applicant fulfills all legal policy requirements for enlistment. I accept: Number for enlistment on behalf of the United States (Enter branch of service) _____ and certify that I have not made any promises or guarantees other than those listed in item 43 above. I further certify that service regulations governing such enlistments have been strictly complied with and any waivers required to effect applicant's enlistment have been secured and are attached to this document.			
1. NAME OF APPLICANT (Last, first, middle initial)		2. DATE OF BIRTH	
3. ADDRESS		4. OCCUPATION	
SECTION VI - RECERTIFICATION			
45. RECERTIFICATION BY APPLICANT AND CORRECTION OF DATA AT THE TIME OF ACTIVE DUTY ENTRY			
I have reviewed all information contained in this document this date. That information is still correct and true to the best of my knowledge and belief. If changes were required, the original entry has been marked "See item 45" and the correct information is provided below.			
1. NAME OF APPLICANT		2. DATE OF BIRTH	
3. ADDRESS		4. OCCUPATION	
5. DATE OF ENTRY INTO ACTIVE DUTY		6. DATE OF EXPIRATION OF SERVICE	
7. DATE OF REENTRY INTO ACTIVE DUTY		8. DATE OF EXPIRATION OF SERVICE	
9. DATE OF REENTRY INTO ACTIVE DUTY		10. DATE OF EXPIRATION OF SERVICE	
11. DATE OF REENTRY INTO ACTIVE DUTY		12. DATE OF EXPIRATION OF SERVICE	
13. DATE OF REENTRY INTO ACTIVE DUTY		14. DATE OF EXPIRATION OF SERVICE	
15. DATE OF REENTRY INTO ACTIVE DUTY		16. DATE OF EXPIRATION OF SERVICE	
17. DATE OF REENTRY INTO ACTIVE DUTY		18. DATE OF EXPIRATION OF SERVICE	
19. DATE OF REENTRY INTO ACTIVE DUTY		20. DATE OF EXPIRATION OF SERVICE	
21. DATE OF REENTRY INTO ACTIVE DUTY		22. DATE OF EXPIRATION OF SERVICE	
23. DATE OF REENTRY INTO ACTIVE DUTY		24. DATE OF EXPIRATION OF SERVICE	
25. DATE OF REENTRY INTO ACTIVE DUTY		26. DATE OF EXPIRATION OF SERVICE	
27. DATE OF REENTRY INTO ACTIVE DUTY		28. DATE OF EXPIRATION OF SERVICE	
29. DATE OF REENTRY INTO ACTIVE DUTY		30. DATE OF EXPIRATION OF SERVICE	
31. DATE OF REENTRY INTO ACTIVE DUTY		32. DATE OF EXPIRATION OF SERVICE	
33. DATE OF REENTRY INTO ACTIVE DUTY		34. DATE OF EXPIRATION OF SERVICE	
35. DATE OF REENTRY INTO ACTIVE DUTY		36. DATE OF EXPIRATION OF SERVICE	
37. DATE OF REENTRY INTO ACTIVE DUTY		38. DATE OF EXPIRATION OF SERVICE	
39. DATE OF REENTRY INTO ACTIVE DUTY		40. DATE OF EXPIRATION OF SERVICE	
41. DATE OF REENTRY INTO ACTIVE DUTY		42. DATE OF EXPIRATION OF SERVICE	
43. DATE OF REENTRY INTO ACTIVE DUTY		44. DATE OF EXPIRATION OF SERVICE	
45. DATE OF REENTRY INTO ACTIVE DUTY		46. DATE OF EXPIRATION OF SERVICE	
47. DATE OF REENTRY INTO ACTIVE DUTY		48. DATE OF EXPIRATION OF SERVICE	
49. DATE OF REENTRY INTO ACTIVE DUTY		50. DATE OF EXPIRATION OF SERVICE	
51. DATE OF REENTRY INTO ACTIVE DUTY		52. DATE OF EXPIRATION OF SERVICE	
53. DATE OF REENTRY INTO ACTIVE DUTY		54. DATE OF EXPIRATION OF SERVICE	
55. DATE OF REENTRY INTO ACTIVE DUTY		56. DATE OF EXPIRATION OF SERVICE	
57. DATE OF REENTRY INTO ACTIVE DUTY		58. DATE OF EXPIRATION OF SERVICE	
59. DATE OF REENTRY INTO ACTIVE DUTY		60. DATE OF EXPIRATION OF SERVICE	
61. DATE OF REENTRY INTO ACTIVE DUTY		62. DATE OF EXPIRATION OF SERVICE	
63. DATE OF REENTRY INTO ACTIVE DUTY		64. DATE OF EXPIRATION OF SERVICE	
65. DATE OF REENTRY INTO ACTIVE DUTY		66. DATE OF EXPIRATION OF SERVICE	
67. DATE OF REENTRY INTO ACTIVE DUTY		68. DATE OF EXPIRATION OF SERVICE	
69. DATE OF REENTRY INTO ACTIVE DUTY		70. DATE OF EXPIRATION OF SERVICE	
71. DATE OF REENTRY INTO ACTIVE DUTY		72. DATE OF EXPIRATION OF SERVICE	
73. DATE OF REENTRY INTO ACTIVE DUTY		74. DATE OF EXPIRATION OF SERVICE	
75. DATE OF REENTRY INTO ACTIVE DUTY		76. DATE OF EXPIRATION OF SERVICE	
77. DATE OF REENTRY INTO ACTIVE DUTY		78. DATE OF EXPIRATION OF SERVICE	
79. DATE OF REENTRY INTO ACTIVE DUTY		80. DATE OF EXPIRATION OF SERVICE	
81. DATE OF REENTRY INTO ACTIVE DUTY		82. DATE OF EXPIRATION OF SERVICE	
83. DATE OF REENTRY INTO ACTIVE DUTY		84. DATE OF EXPIRATION OF SERVICE	
85. DATE OF REENTRY INTO ACTIVE DUTY		86. DATE OF EXPIRATION OF SERVICE	
87. DATE OF REENTRY INTO ACTIVE DUTY		88. DATE OF EXPIRATION OF SERVICE	
89. DATE OF REENTRY INTO ACTIVE DUTY		90. DATE OF EXPIRATION OF SERVICE	
91. DATE OF REENTRY INTO ACTIVE DUTY		92. DATE OF EXPIRATION OF SERVICE	
93. DATE OF REENTRY INTO ACTIVE DUTY		94. DATE OF EXPIRATION OF SERVICE	
95. DATE OF REENTRY INTO ACTIVE DUTY		96. DATE OF EXPIRATION OF SERVICE	
97. DATE OF REENTRY INTO ACTIVE DUTY		98. DATE OF EXPIRATION OF SERVICE	
99. DATE OF REENTRY INTO ACTIVE DUTY		100. DATE OF EXPIRATION OF SERVICE	

DD Form 1566/15, AUG 85

WENDU 400-015 479 030018

PAGE 5

NAME		SOCIAL SECURITY NUMBER	
NOTE USE THIS DO FORM 1966 PAGE ONLY IF EITHER SECTION APPLIES TO THE APPLICANT'S RECORD OF MILITARY PROCESSING			
SECTION VII - PARENTAL/GUARDIAN CONSENT FOR ENLISTMENT			
26. PARENT/GUARDIAN STATEMENT(S) (Use our options not applicable)			
a. I/we certify that (Enter name of applicant) _____ has no other legal guardian other than me/us and I/we consent to his/her enlistment in the United States (Enter Branch of Service) _____ I/we certify that no promises or any kind have been made to me/us concerning assignment to duty, training, or promotion during his/her enlistment as an inducement to me/us to sign this consent. I/we hereby authorize the Armed Forces representatives concerned to perform medical examinations, other examinations required, and to conduct records checks to determine his/her eligibility. I/we relinquish all claim to his/her service and to any wage or compensation for such service.		b. FOR ENLISTMENT IN A RESERVE COMPONENT I/we understand that, as a member of a reserve component, he/she must serve minimum periods of active duty for training unless excused by competent authority. In the event he/she fails to fulfill the obligations of his/her reserve enlistment, he/she may be recalled to active duty as prescribed by law. I/we further understand that while he/she is in the ready reserve, he/she may be ordered to extended active duty in time of war or national emergency declared by the Congress or the President or when otherwise authorized by law.	
c. PARENT (1) TYPED OR PRINTED NAME (Last, First, Middle Name) _____ (2) Signature _____		(3) DATE SIGNED (Month/Day/Year) _____	
d. WITNESS (1) TYPED OR PRINTED NAME (Last, First, Middle Name) _____ (2) Signature _____		(3) DATE SIGNED (Month/Day/Year) _____	

Appendix D to opinion of ALITO, J.

e. PARENT		(1) DATE SIGNED (month/year)	
(1) PRINT OR PRINTED NAME (Last, First, Middle Initial)	(2) SIGNATURE		
f. WITNESS		(3) DATE SIGNED (month/year)	
(1) PRINT OR PRINTED NAME (Last, First, Middle Initial)	(2) SIGNATURE		
47. VERIFICATION OF SINGLE SIGNATURE CONSENT			
SECTION VIII - STATEMENT OF NAME FOR OFFICIAL MILITARY RECORDS			
48. NAME CHANGE. If the preferred enlistment name (name given in item 2) is not the same as on your birth certificate, and it has not been changed by legal procedure prescribed by state law, and it is the same as on your social security number card, complete the following:			
a. NAME AS SHOWN ON BIRTH CERTIFICATE		b. NAME AS SHOWN ON SOCIAL SECURITY NUMBER CARD	
c. I hereby state that I have not changed my name through any court or other legal procedure; that I prefer to use the name of _____ by which I am known in the community as a matter of convenience and with no criminal intent. I further state that I am the same person as the person whose name is shown in item 2.			
d. WITNESS		e. APPLICANT	
(1) PRINT OR PRINTED NAME	(2) SIGNATURE	(1) SIGNATURE	(2) DATE SIGNED (month/year)

DD Form 1966/6, AUG 85

Previous editions are obsolete

PAGE 6

KAVANAUGH, J., dissenting

JUSTICE KAVANAUGH, dissenting.

Like many cases in this Court, this case boils down to one fundamental question: Who decides? Title VII of the Civil Rights Act of 1964 prohibits employment discrimination “because of” an individual’s “race, color, religion, sex, or national origin.” The question here is whether Title VII should be expanded to prohibit employment discrimination because of sexual orientation. Under the Constitution’s separation of powers, the responsibility to amend Title VII belongs to Congress and the President in the legislative process, not to this Court.

The political branches are well aware of this issue. In 2007, the U. S. House of Representatives voted 235 to 184 to prohibit employment discrimination on the basis of sexual orientation. In 2013, the U. S. Senate voted 64 to 32 in favor of a similar ban. In 2019, the House again voted 236 to 173 to outlaw employment discrimination on the basis of sexual orientation. Although both the House and Senate have voted at different times to prohibit sexual orientation discrimination, the two Houses have not yet come together with the President to enact a bill into law.

The policy arguments for amending Title VII are very weighty. The Court has previously stated, and I fully agree, that gay and lesbian Americans “cannot be treated as social outcasts or as inferior in dignity and worth.” *Masterpiece Cakeshop, Ltd. v. Colorado Civil Rights Comm’n*, 584 U. S. 617, 631 (2018).

But we are judges, not Members of Congress. And in Alexander Hamilton’s words, federal judges exercise “neither Force nor Will, but merely judgment.” The Federalist No. 78, p. 523 (J. Cooke ed. 1961). Under the Constitution’s separation of powers, our role as judges is to interpret and follow the law as written, regardless of whether we like the result. Cf. *Texas v. Johnson*, 491 U. S. 397, 420–421 (1989) (Kennedy, J., concurring). Our role is not to make or amend

KAVANAUGH, J., dissenting

the law. As written, Title VII does not prohibit employment discrimination because of sexual orientation.¹

I

Title VII makes it unlawful for employers to discriminate because of “race, color, religion, sex, or national origin.” 42 U. S. C. § 2000e–2(a)(1).² As enacted in 1964, Title VII did not prohibit other forms of employment discrimination, such as age discrimination, disability discrimination, or sexual orientation discrimination.

Over time, Congress has enacted new employment discrimination laws. In 1967, Congress passed and President Johnson signed the Age Discrimination in Employment Act. 81 Stat. 602. In 1973, Congress passed and President Nixon signed the Rehabilitation Act, which in substance prohibited

¹ Although this opinion does not separately analyze discrimination on the basis of gender identity, this opinion’s legal analysis of discrimination on the basis of sexual orientation would apply in much the same way to discrimination on the basis of gender identity.

² In full, the statute provides:

“It shall be an unlawful employment practice for an employer—

“(1) to fail or refuse to hire or to discharge any individual, or otherwise to discriminate against any individual with respect to his compensation, terms, conditions, or privileges of employment, because of such individual’s race, color, religion, sex, or national origin; or

“(2) to limit, segregate, or classify his employees or applicants for employment in any way which would deprive or tend to deprive any individual of employment opportunities or otherwise adversely affect his status as an employee, because of such individual’s race, color, religion, sex, or national origin.” 42 U. S. C. § 2000e–2(a) (emphasis added).

As the Court today recognizes, Title VII contains an important exemption for religious organizations. § 2000e–1(a); see also § 2000e–2(e). The First Amendment also safeguards the employment decisions of religious employers. See *Hosanna-Tabor Evangelical Lutheran Church and School v. EEOC*, 565 U. S. 171, 188–195 (2012). So too, the Religious Freedom Restoration Act of 1993 exempts employers from federal laws that substantially burden the exercise of religion, subject to limited exceptions. § 2000bb–1.

KAVANAUGH, J., dissenting

disability discrimination against federal and certain other employees. 87 Stat. 355. In 1990, Congress passed and President George H. W. Bush signed the comprehensive Americans with Disabilities Act. 104 Stat. 327.

To prohibit age discrimination and disability discrimination, this Court did not unilaterally rewrite or update the law. Rather, Congress and the President enacted new legislation, as prescribed by the Constitution's separation of powers.

For several decades, Congress has considered numerous bills to prohibit employment discrimination based on sexual orientation. But as noted above, although Congress has come close, it has not yet shouldered a bill over the legislative finish line.

In the face of the unsuccessful legislative efforts (so far) to prohibit sexual orientation discrimination, judges may not rewrite the law simply because of their own policy views. Judges may not update the law merely because they think that Congress does not have the votes or the fortitude. Judges may not predictively amend the law just because they believe that Congress is likely to do it soon anyway.

If judges could rewrite laws based on their own policy views, or based on their own assessments of likely future legislative action, the critical distinction between legislative authority and judicial authority that undergirds the Constitution's separation of powers would collapse, thereby threatening the impartial rule of law and individual liberty. As James Madison stated: "Were the power of judging joined with the legislative, the life and liberty of the subject would be exposed to arbitrary controul, for *the judge* would then be *the legislator*." The Federalist No. 47, at 326 (citing Montesquieu). If judges could, for example, rewrite or update securities laws or healthcare laws or gun laws or environmental laws simply based on their own policy views, the Judiciary would become a democratically illegitimate super-legislature—unelected, and hijacking the important

KAVANAUGH, J., dissenting

policy decisions reserved by the Constitution to the people's elected representatives.

Because judges interpret the law as written, not as they might wish it were written, the first 10 U. S. Courts of Appeals to consider whether Title VII prohibits sexual orientation discrimination all said no. Some 30 federal judges considered the question. All 30 judges said no, based on the text of the statute. 30 out of 30.

But in the last few years, a new theory has emerged. To end-run the bedrock separation-of-powers principle that courts may not unilaterally rewrite statutes, the plaintiffs here (and, recently, two Courts of Appeals) have advanced a novel and creative argument. They contend that discrimination “because of sexual orientation” and discrimination “because of sex” are actually not separate categories of discrimination after all. Instead, the theory goes, discrimination because of sexual orientation always qualifies as discrimination because of sex: When a gay man is fired because he is gay, he is fired because he is attracted to men, even though a similarly situated woman would not be fired just because she is attracted to men. According to this theory, it follows that the man has been fired, at least as a literal matter, because of his sex.

Under this literalist approach, sexual orientation discrimination automatically qualifies as sex discrimination, and Title VII's prohibition against sex discrimination therefore also prohibits sexual orientation discrimination—and actually has done so since 1964, unbeknownst to everyone. Surprisingly, the Court today buys into this approach. *Ante*, at 659–662.

For the sake of argument, I will assume that firing someone because of their sexual orientation may, as a very literal matter, entail making a distinction based on sex. But to prevail in this case with their literalist approach, the plaintiffs must *also* establish one of two other points. The plaintiffs must establish that courts, when interpreting a statute, adhere to literal meaning rather than ordinary meaning. Or

KAVANAUGH, J., dissenting

alternatively, the plaintiffs must establish that the ordinary meaning of “discriminate because of sex”—not just the literal meaning—encompasses sexual orientation discrimination. The plaintiffs fall short on both counts.

First, courts must follow ordinary meaning, not literal meaning. And courts must adhere to the ordinary meaning of phrases, not just the meaning of the words in a phrase.

There is no serious debate about the foundational interpretive principle that courts adhere to ordinary meaning, not literal meaning, when interpreting statutes. As Justice Scalia explained, “the good textualist is not a literalist.” A. Scalia, *A Matter of Interpretation* 24 (1997). Or as Professor Eskridge stated: The “prime directive in statutory interpretation is to apply the meaning that a reasonable reader would derive from the text of the law,” so that “for hard cases as well as easy ones, the *ordinary meaning* (or the ‘everyday meaning’ or the ‘commonsense’ reading) of the relevant statutory text is the anchor for statutory interpretation.” W. Eskridge, *Interpreting Law* 33, 34–35 (2016) (footnote omitted). Or as Professor Manning put it, proper statutory interpretation asks “how a reasonable person, conversant with the relevant social and linguistic conventions, would read the text in context. This approach recognizes that the literal or dictionary definitions of words will often fail to account for settled nuances or background conventions that qualify the literal meaning of language and, in particular, of legal language.” Manning, *The Absurdity Doctrine*, 116 Harv. L. Rev. 2387, 2392–2393 (2003). Or as Professor Nelson wrote: No “mainstream judge is interested solely in the literal definitions of a statute’s words.” Nelson, *What Is Textualism?*, 91 Va. L. Rev. 347, 376 (2005). The ordinary meaning that counts is the ordinary public meaning at the time of enactment—although in this case, that temporal principle matters little because the ordinary meaning of “discriminate because of sex” was the same in 1964 as it is now.

KAVANAUGH, J., dissenting

Judges adhere to ordinary meaning for two main reasons: rule of law and democratic accountability. A society governed by the rule of law must have laws that are known and understandable to the citizenry. And judicial adherence to ordinary meaning facilitates the democratic accountability of America's elected representatives for the laws they enact. Citizens and legislators must be able to ascertain the law by reading the words of the statute. Both the rule of law and democratic accountability badly suffer when a court adopts a hidden or obscure interpretation of the law, and not its ordinary meaning.

Consider a simple example of how ordinary meaning differs from literal meaning. A statutory ban on "vehicles in the park" would literally encompass a baby stroller. But no good judge would interpret the statute that way because the word "vehicle," in its ordinary meaning, does not encompass baby strollers.

The ordinary meaning principle is longstanding and well settled. Time and again, this Court has rejected literalism in favor of ordinary meaning. Take a few examples:

- The Court recognized that beans may be seeds "in the language of botany or natural history," but concluded that beans are not seeds "in commerce" or "in common parlance." *Robertson v. Salomon*, 130 U. S. 412, 414 (1889).
- The Court explained that tomatoes are literally "the fruit of a vine," but "in the common language of the people," tomatoes are vegetables. *Nix v. Hedden*, 149 U. S. 304, 307 (1893).
- The Court stated that the statutory term "vehicle" does not cover an aircraft: "No doubt etymologically it is possible to use the word to signify a conveyance working on land, water or air But in everyday speech 'vehicle' calls up the picture of a thing moving on land." *McBoyle v. United States*, 283 U. S. 25, 26 (1931).

KAVANAUGH, J., dissenting

- The Court pointed out that “this Court’s interpretation of the three-judge-court statutes has frequently deviated from the path of literalism.” *Gonzalez v. Automatic Employees Credit Union*, 419 U. S. 90, 96 (1974).
- The Court refused a reading of “mineral deposits” that would include water, even if “water is a ‘mineral,’ in the broadest sense of that word,” because it would bring about a “major . . . alteration in established legal relationships based on nothing more than an overly literal reading of a statute, without any regard for its context or history.” *Andrus v. Charlestone Stone Products Co.*, 436 U. S. 604, 610, 616 (1978).
- The Court declined to interpret “facilitating” a drug distribution crime in a way that would cover purchasing drugs, because the “literal sweep of ‘facilitate’ sits uncomfortably with common usage.” *Abuelhawa v. United States*, 556 U. S. 816, 820 (2009).
- The Court rebuffed a literal reading of “personnel rules” that would encompass any rules that personnel must follow (as opposed to human resources rules *about* personnel), and stated that no one “using ordinary language would describe” personnel rules “in this manner.” *Milner v. Department of Navy*, 562 U. S. 562, 578 (2011).
- The Court explained that, when construing statutory phrases such as “arising from,” it avoids “uncritical literalism leading to results that no sensible person could have intended.” *Jennings v. Rodriguez*, 583 U. S. 281, 293–294 (2018) (plurality opinion) (internal quotation marks omitted).

Those cases exemplify a deeply rooted principle: When there is a divide between the literal meaning and the ordinary meaning, courts must follow the ordinary meaning.

Next is a critical point of emphasis in this case. The difference between literal and ordinary meaning becomes especially important when—as in this case—judges consider

KAVANAUGH, J., dissenting

phrases in statutes. (Recall that the shorthand version of the phrase at issue here is “discriminate because of sex.”)³ Courts must heed the ordinary meaning of the *phrase as a whole*, not just the meaning of the words in the phrase. That is because a phrase may have a more precise or confined meaning than the literal meaning of the individual words in the phrase. Examples abound. An “American flag” could literally encompass a flag made in America, but in common parlance it denotes the Stars and Stripes. A “three-pointer” could literally include a field goal in football, but in common parlance, it is a shot from behind the arc in basketball. A “cold war” could literally mean any wintertime war, but in common parlance it signifies a conflict short of open warfare. A “washing machine” could literally refer to any machine used for washing any item, but in everyday speech it means a machine for washing clothes.

This Court has often emphasized the importance of sticking to the ordinary meaning *of a phrase*, rather than the meaning of words in the phrase. In *FCC v. AT&T Inc.*, 562 U.S. 397 (2011), for example, the Court explained:

“AT&T’s argument treats the term ‘personal privacy’ as simply the sum of its two words: the privacy of a person. . . . But two words together may assume a more particular meaning than those words in isolation. We understand a golden cup to be a cup made of or resembling gold. A golden boy, on the other hand, is one who is charming, lucky, and talented. A golden opportunity is one not to be missed. ‘Personal’ in the phrase ‘personal privacy’ conveys more than just ‘of a person.’

³The full phrasing of the statute is provided above in footnote 2. This opinion uses “discriminate because of sex” as shorthand for “discriminate . . . because of . . . sex.” Also, the plaintiffs do not dispute that the ordinary meaning of the statutory phrase “discriminate” because of sex is the same as the statutory phrase “to fail or refuse to hire or to discharge any individual” because of sex.

KAVANAUGH, J., dissenting

It suggests a type of privacy evocative of human concerns—not the sort usually associated with an entity like, say, AT&T.” *Id.*, at 406.

Exactly right and exactly on point in this case.

Justice Scalia explained the extraordinary importance of hewing to the ordinary meaning of a phrase: “Adhering to the *fair meaning* of the text (the textualist’s touchstone) does not limit one to the hyperliteral meaning of each word in the text. In the words of Learned Hand: ‘a sterile literalism . . . loses sight of the forest for the trees.’ The full body of a text contains implications that can alter the literal meaning of individual words.” A. Scalia & B. Garner, *Reading Law* 356 (2012) (footnote omitted). Put another way, “the meaning of a sentence may be more than that of the separate words, as a melody is more than the notes.” *Helvering v. Gregory*, 69 F. 2d 809, 810–811 (CA2 1934) (L. Hand, J.). Judges must take care to follow ordinary meaning “when two words combine to produce a meaning that is not the mechanical composition of the two words separately.” Eskridge, *Interpreting Law*, at 62. Dictionaries are not “always useful for determining the ordinary meaning of word clusters (like ‘driving a vehicle’) or phrases and clauses or entire sentences.” *Id.*, at 44. And we must recognize that a phrase can cover a “dramatically smaller category than either component term.” *Id.*, at 62.

If the usual evidence indicates that a statutory phrase bears an ordinary meaning different from the literal strung-together definitions of the individual words in the phrase, we may not ignore or gloss over that discrepancy. “Legislation cannot sensibly be interpreted by stringing together dictionary synonyms of each word and proclaiming that, if the right example of the meaning of each is selected, the ‘plain meaning’ of the statute leads to a particular result. No theory of interpretation, including textualism itself, is premised on

KAVANAUGH, J., dissenting

such an approach.” 883 F. 3d 100, 144, n. 7 (CA2 2018) (Lynch, J., dissenting).⁴

In other words, this Court’s precedents and longstanding principles of statutory interpretation teach a clear lesson: Do not simply split statutory phrases into their component words, look up each in a dictionary, and then mechanically put them together again, as the majority opinion today mistakenly does. See *ante*, at 655–659. To reiterate Justice Scalia’s caution, that approach misses the forest for the trees.

A literalist approach to interpreting phrases disrespects ordinary meaning and deprives the citizenry of fair notice of what the law is. It destabilizes the rule of law and thwarts democratic accountability. For phrases as well as terms, the “linchpin of statutory interpretation is *ordinary meaning*, for that is going to be most accessible to the citizenry desirous of following the law *and* to the legislators and their staffs drafting the legal terms of the plans launched by statutes *and* to the administrators and judges implementing the statutory plan.” Eskridge, *Interpreting Law*, at 81; see Scalia, *A Matter of Interpretation*, at 17.

Bottom line: Statutory Interpretation 101 instructs courts to follow ordinary meaning, not literal meaning, and to adhere to the ordinary meaning of phrases, not just the meaning of the words in a phrase.

Second, in light of the bedrock principle that we must adhere to the ordinary meaning of a phrase, the question in

⁴ Another longstanding canon of statutory interpretation—the absurdity canon—similarly reflects the law’s focus on ordinary meaning rather than literal meaning. That canon tells courts to avoid construing a statute in a way that would lead to absurd consequences. The absurdity canon, properly understood, is “an implementation of (rather than . . . an exception to) the ordinary meaning rule.” W. Eskridge, *Interpreting Law* 72 (2016). “What the rule of absurdity seeks to do is what all rules of interpretation seek to do: *make sense* of the text.” A. Scalia & B. Garner, *Reading Law* 235 (2012).

KAVANAUGH, J., dissenting

this case boils down to the ordinary meaning of the phrase “discriminate because of sex.” Does the ordinary meaning of that phrase encompass discrimination because of sexual orientation? The answer is plainly no.

On occasion, it can be difficult for judges to assess ordinary meaning. Not here. Both common parlance and common legal usage treat sex discrimination and sexual orientation discrimination as two distinct categories of discrimination—back in 1964 and still today.

As to common parlance, few in 1964 (or today) would describe a firing because of sexual orientation as a firing because of sex. As commonly understood, sexual orientation discrimination is distinct from, and not a form of, sex discrimination. The majority opinion acknowledges the common understanding, noting that the plaintiffs here probably did not tell their friends that they were fired because of their sex. *Ante*, at 666. That observation is clearly correct. In common parlance, Bostock and Zarda were fired because they were gay, not because they were men.

Contrary to the majority opinion’s approach today, this Court has repeatedly emphasized that common parlance matters in assessing the ordinary meaning of a statute, because courts heed how “most people” “would have understood” the text of a statute when enacted. *New Prime Inc. v. Oliveira*, 586 U. S. 105, 114 (2019); see *Henson v. Santander Consumer USA Inc.*, 582 U. S. 79, 84 (2017) (using a conversation between friends to demonstrate ordinary meaning); see also *Wisconsin Central Ltd. v. United States*, 585 U. S. 274, 278 (2018) (similar); *AT&T*, 562 U. S., at 403–404 (similar).

Consider the employer who has four employees but must fire two of them for financial reasons. Suppose the four employees are a straight man, a straight woman, a gay man, and a lesbian. The employer with animosity against women (animosity based on sex) will fire the two women. The employer with animosity against gays (animosity based on sexual orientation) will fire the gay man and the lesbian. Those are two distinct harms caused by two distinct biases that

KAVANAUGH, J., dissenting

have two different outcomes. To treat one as a form of the other—as the majority opinion does—misapprehends common language, human psychology, and real life. See *Hively v. Ivy Tech Community College of Ind.*, 853 F. 3d 339, 363 (CA7 2017) (Sykes, J., dissenting).

It also rewrites history. Seneca Falls was not Stonewall. The women’s rights movement was not (and is not) the gay rights movement, although many people obviously support or participate in both. So to think that sexual orientation discrimination is just a form of sex discrimination is not just a mistake of language and psychology, but also a mistake of history and sociology.

Importantly, an overwhelming body of federal law reflects and reinforces the ordinary meaning and demonstrates that sexual orientation discrimination is distinct from, and not a form of, sex discrimination. Since enacting Title VII in 1964, Congress has *never* treated sexual orientation discrimination the same as, or as a form of, sex discrimination. Instead, Congress has consistently treated sex discrimination and sexual orientation discrimination as legally distinct categories of discrimination.

Many federal statutes prohibit sex discrimination, and many federal statutes also prohibit sexual orientation discrimination. But those sexual orientation statutes expressly prohibit sexual orientation discrimination in addition to expressly prohibiting sex discrimination. *Every single one*. To this day, Congress has never defined sex discrimination to encompass sexual orientation discrimination. Instead, when Congress wants to prohibit sexual orientation discrimination in addition to sex discrimination, Congress explicitly refers to sexual orientation discrimination.⁵

⁵ See 18 U. S. C. § 249(a)(2)(A) (criminalizing violence because of “gender, sexual orientation”); 20 U. S. C. § 1092(f)(1)(F)(ii) (requiring funding recipients to collect statistics on crimes motivated by the victim’s “gender, . . . sexual orientation”); 34 U. S. C. § 12291(b)(13)(A) (prohibiting discrimination on the basis of “sex, . . . sexual orientation”); § 30501(1) (identifying violence motivated by “gender, sexual orientation” as national problem);

KAVANAUGH, J., dissenting

That longstanding and widespread congressional practice matters. When interpreting statutes, as the Court has often said, we “usually presume differences in language” convey “differences in meaning.” *Wisconsin Central*, 585 U. S., at 279 (internal quotation marks omitted). When Congress chooses distinct phrases to accomplish distinct purposes, and does so over and over again for decades, we may not lightly toss aside all of Congress’s careful handiwork. As Justice Scalia explained for the Court, “it is not our function” to “treat alike subjects that different Congresses have chosen to treat differently.” *West Virginia Univ. Hospitals, Inc. v. Casey*, 499 U. S. 83, 101 (1991); see *id.*, at 92.

And the Court has likewise stressed that we may not read “a specific concept into general words when precise language in other statutes reveals that Congress knew how to identify that concept.” Eskridge, *Interpreting Law*, at 415; see *University of Tex. Southwestern Medical Center v. Nassar*, 570 U. S. 338, 357 (2013); *Arlington Central School Dist. Bd. of Ed. v. Murphy*, 548 U. S. 291, 297–298 (2006); *Jama v. Immigration and Customs Enforcement*, 543 U. S. 335, 341–342 (2005); *Custis v. United States*, 511 U. S. 485, 491–493 (1994); *West Virginia Univ. Hospitals*, 499 U. S., at 99.

So it is here. As demonstrated by all of the statutes covering sexual orientation discrimination, Congress knows how to prohibit sexual orientation discrimination. So courts

§ 30503(a)(1)(C) (authorizing Attorney General to assist state, local, and tribal investigations of crimes motivated by the victim’s “gender, sexual orientation”); §§ 41305(b)(1), (3) (requiring Attorney General to acquire data on crimes motivated by “gender . . . , sexual orientation,” but disclaiming any cause of action including one “based on discrimination due to sexual orientation”); 42 U. S. C. § 294e–1(b)(2) (conditioning funding on institution’s inclusion of persons of “different genders and sexual orientations”); see also United States Sentencing Commission, *Guidelines Manual* § 3A1.1(a) (Nov. 2018) (authorizing increased offense level if the crime was motivated by the victim’s “gender . . . or sexual orientation”); 2E Guide to Judiciary Policy § 320 (2019) (prohibiting judicial discrimination because of “sex, . . . sexual orientation”).